

Complaint Report (CCRB)

CCRB Case No :	201301642	C/V Report Date :	Fri, 02/15/2013
Complaint Type :	CCRB	Investigator :	Lauren Kerstein
Complaint Made At :	IAB	Ref. No	13-6967
Received Date (CCRB) :	Wed, 03/13/2013 04:22 PM	Mode :	Phone
Incident Date(s) :	Wed, 02/13/2013 5:18 PM		
Place of Occurrence:	[REDACTED]	Precinct:	52
Location :	Street/highway	Boro:	Bronx
Reason for Initial Contact :	PD suspected C/V of violation/crime - auto		
Charges:	Arrest - other violation/crime		

Complainant/Victim Details

Name:	[REDACTED]	Type:	Comp/Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]
Injury Details:	<u>Type of Injury</u>	<u>Description</u>	
	Lacerations w/o Stitches	Scratches to back of neck	
Injury Details:	<u>Type of Injury</u>	<u>Description</u>	
	Swelling	Swelling to head, face and arms	
Injury Details:	<u>Type of Injury</u>	<u>Description</u>	
	Other Injury	Scar to wrist and neck.	

Officer(s) Named in Complaint

Rank	Officer	S/W Officer	Tax No	Race	Cmd	Allegations/Board Dispositions
POM	Brandon Gembeki	Subject Officer	[REDACTED]	White	052	Chokehold - (F) Unsubstantiated
SGT	Scott Burton	Subject Officer	[REDACTED]	White	052	Threat of force (verbal or physical) - (A) Exonerated
POM	Reginald Smith	Subject Officer	[REDACTED]	Black	052	Physical force - (punched/kicked/kneed) - (F) Unsubstantiated
POM	Reginald Smith	Subject Officer	[REDACTED]	Black	052	Threat of force (verbal or physical) - (A) Unsubstantiated
	Officers	Subject Officer	[REDACTED]		052	Vehicle search - (A) Exonerated

Initial Complaint Narrative

02/15/13 THE ORIGINAL LOG # 13-6784 WAS ASSESSED AS AN "OG". THIS IS A SPIN-OFF CCRB**FADO-FORCE ALLEGATION. Sergeant Sedeniussen of the 52nd Precinct called the Command Center to report a prisoner injured in NYPD custody. Defendant [REDACTED] [REDACTED] was double parked at a fire hydrant when he was approached by police. The defendant refused to present his ID card and became combative with officers. The defendant states that six unidentified police officers pulled him from his vehicle and punched him several times in the head. He was taken to [REDACTED] Hospital to be treated for scratches to the back of his neck, pain in his shoulder and ribs and swelling to the right side of his face.

Witness

Name of Witness:

[REDACTED]

Address:

[REDACTED]

Contacts:

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Gender :

[REDACTED]

Ethnicity:

[REDACTED]

Date of Birth :

[REDACTED]